

SENATE FLOOR VERSION

April 22, 2025

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 1096

By: Hasenbeck of the House

and

Pugh of the Senate

An Act relating to schools; amending 70 O.S. 2021, Sections 6-194, as last amended by Section 2, Chapter 15, O.S.L. 2023, 6-195.1, 11-107.1, and 1210.508 (70 O.S. Supp. 2024, Section 6-194), which relate to student testing; modifying certain goal for professional development programs; modifying intent of certain continuing education program; modifying reference to certain exam; allowing certain exam scores to be considered in determining whether a student needs a remediation course; modifying reference to certain average exam score to be used in goal for subject matter standards; defining terms; requiring students who take certain test to do so at certain testing site; amending 70 O.S. 2021, Sections 2403 and 2603, as amended by Section 1, Chapter 440, O.S.L. 2024 (70 O.S. Supp. 2024, Section 2603), which relate to eligibility for higher education assistance; modifying reference to certain exam to qualify for the Oklahoma State Regents' Academic Scholars Program; allowing certain equivalent scores to be used to determine eligibility for the Oklahoma Higher Learning Access Program; providing for codification; providing an effective date; and declaring an emergency.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-194, as
3 last amended by Section 2, Chapter 15, O.S.L. 2023 (70 O.S. Supp.
4 2024, Section 6-194), is amended to read as follows:

5 Section 6-194. A. The district boards of education of this
6 state shall establish professional development programs for the
7 certified teachers and administrators of the district. Programs
8 shall be adopted by each board based upon recommendations of a
9 professional development committee appointed by the board of
10 education for the district.

11 B. Each professional development committee shall include
12 classroom teachers, administrators, school counselors or licensed
13 mental health providers, and parents, guardians, or custodians of
14 children in the school district and shall consult with a higher
15 education faculty. A majority of the members of the professional
16 development committee shall be composed of classroom teachers. The
17 teacher members shall be selected by a designated administrator of
18 the school district from a list of names submitted by the teachers
19 in the school district. The members selected shall be subject to
20 the approval of a majority vote of the teachers in the district.

21 C. In developing program recommendations, each professional
22 development committee shall annually utilize a data-driven approach
23 to analyze student data and determine district and school
24 professional development needs. The professional development

1 programs adopted shall be directed toward development of
2 competencies and instructional strategies in the core curriculum
3 areas for the following goals:

4 1. Increasing the academic performance data scores for the
5 district and each school site;

6 2. Closing achievement gaps among student subgroups;

7 3. Increasing student achievement as demonstrated on state-
8 mandated tests and ~~the ACT~~ nationally norm-referenced college
9 entrance exams;

10 4. Increasing high school graduation rates; and

11 5. Decreasing college remediation rates.

12 Each program may also include components on classroom management
13 and student discipline strategies, outreach to parents, guardians,
14 or custodians of students, special education, and racial and ethnic
15 education, which all personnel defined as teachers in Section 1-116
16 of this title shall be required to complete at a frequency as
17 determined by the board of education. The State Board of Education
18 shall provide guidelines to assist school districts in developing
19 and implementing racial and ethnic education components into
20 professional development programs.

21 D. A program which includes the following information shall be
22 completed the first year a certified teacher is employed by a school
23 district, and then once every fifth academic year:

24 1. Training on recognition of child abuse and neglect;

2. Recognition of child sexual abuse;

3. Proper reporting of suspected abuse; and

4. Available resources.

E. One time per year, beginning in the 2009-2010 school year, training in the area of autism shall be offered and all resident teachers of students in early childhood programs through grade three shall be required to complete the autism training during the resident year and at least one time every three (3) years thereafter. All other teachers and education support professionals of students in early childhood programs through grade three shall be required to complete the autism training at least one time every three (3) years. The autism training shall include a minimum awareness of the characteristics of autistic children, resources available, and an introduction to positive behavior supports to challenging behavior. Each adopted program shall allow school counselors to receive at least one-third (1/3) of the hours or credit required each year through programs or courses specifically designed for school counselors.

Districts are authorized to utilize any means for professional development that is not prohibited by law including, but not limited to, professional development provided by the district, any state agency, institution of higher education, or any private entity.

F. One time per year, beginning in the 2020-2021 school year, a dyslexia awareness program shall be offered. Beginning in the 2023-

2024 school year, the program shall include information and training in dysgraphia. At a minimum, the program shall include:

1. Training in awareness of dyslexia characteristics in students;

2. Training in effective classroom instruction to meet the needs of students with dyslexia; and

3. Available dyslexia resources for teachers, students, and parents.

G. Except as otherwise provided for in this subsection, each certified teacher in this state shall be required by the district board of education to meet the professional development requirements established by the board, or established through the negotiation process. Except as otherwise provided for in this subsection, the professional development requirements established by each board of education shall require every teacher to annually complete a minimum number of the total number of points required to maintain employment; provided, no more than a total of one hundred fifty (150) hours of local, state, or federal professional development or training shall be required for classroom teachers during any five-year period. Failure of any teacher to meet district board of education professional development requirements may be grounds for nonrenewal of such teacher's contract by the board. Such failure may also be grounds for nonconsideration of salary increments

1 affecting the teacher. Teachers shall maintain written
2 documentation of all their completed professional development.

3 H. Each district shall annually submit a report to the State
4 Department of Education on the district level professional
5 development needs, activities completed, expenditures, and results
6 achieved for each school year by each goal as provided in subsection
7 C of this section. If a school district elects not to adopt and
8 offer a professional development program as provided for in
9 subsection A of this section, the district shall not be required to
10 submit an annual report as required pursuant to this subsection but
11 shall report to the State Department of Education its election not
12 to offer a program and all professional development activities
13 completed by teachers and administrators of the school district.

14 I. Subject to the availability of funds, the Department shall
15 develop an online system for reporting as required in subsection H
16 of this section. The Department shall also make such information
17 available on its website.

18 SECTION 2. AMENDATORY 70 O.S. 2021, Section 6-195.1, is
19 amended to read as follows:

20 Section 6-195.1. A. It is hereby declared to be the intent of
21 the Legislature to establish a continuing education program whereby
22 teachers employed to teach mathematics may obtain certification in
23 mathematics and teachers certified to teach mathematics in the state
24 may take higher education courses in order to obtain the

1 competencies needed to enable the teacher to successfully complete
2 the subject area examinations and become certified to teach any of
3 the core curriculum mathematics courses recommended by the ~~American~~
4 ~~College Test~~ State Department of Education. The program shall pay
5 up to One Hundred Dollars (\$100.00) per credit hour up to a maximum
6 of twenty-four (24) credit hours for a teacher to take higher
7 education courses in mathematics. Teachers required to gain
8 certification as provided in Section 6-189.1 of this title shall be
9 given priority in the funding for the continuing education program.
10 The purpose of the program is to improve the knowledge and skills of
11 teachers and to ensure that the children of the state are taught by
12 professional educators, fully prepared in the area of mathematics.

13 B. Implementation of this section shall be contingent upon the
14 appropriation of state funds by the Legislature for the specific
15 purpose of implementing this section. Nothing in this section shall
16 prevent the State Board of Education or a school district board of
17 education from utilizing private, local, or federal funds to
18 implement this section.

19 C. Implementation of this section shall be delayed until the
20 current expenditure per pupil in average daily attendance in public
21 elementary and secondary schools in unadjusted dollars for the 1998-
22 99 school year or any school year thereafter for Oklahoma, as
23 reported by the National Center for Education Statistics annually in
24 the Digest of Education Statistics, reaches at least ninety percent

1 (90%) of the regional average expenditure for that same year, and
2 funds are provided. For purposes of this section, the regional
3 average expenditure shall consist of the current expenditure per
4 pupil in average daily attendance in public elementary and secondary
5 schools in unadjusted dollars for each of the following states:
6 Arkansas, Colorado, Kansas, Missouri, New Mexico, Oklahoma, and
7 Texas, averaged together. By January 1 of each year, the State
8 Board of Education shall report whether or not the ninety-percent
9 expenditure level has been reached based on information reported
10 annually in the Digest of Education Statistics by the National
11 Center for Education Statistics. This section shall be implemented
12 on July 1 after the first January 1 report verifies that the ninety-
13 percent expenditure level has been reached and funds have been
14 provided for the specific purposes of this section.

15 SECTION 3. AMENDATORY 70 O.S. 2021, Section 11-107.1, is
16 amended to read as follows:

17 Section 11-107.1. A. Each school district in this state may
18 offer a remediation course for high school students who score below
19 a nineteen (19) on the American College Testing (ACT) exam or below
20 an equivalent score on the ~~SAT-exam~~ Scholastic Assessment Test (SAT)
21 or Classic Learning Test (CLT) exams.

22 B. Nothing in subsection A of this section shall be construed
23 to require that a teacher providing instruction in the remediation
24

1 course be certified in any subject matter that is tested on the ACT
2 ~~or, SAT exam, or CLT exams.~~

3 SECTION 4. AMENDATORY 70 O.S. 2021, Section 1210.508, is
4 amended to read as follows:

5 Section 1210.508. A. 1. By no later than December 31, 2016,
6 the State Board of Education shall adopt a statewide system of
7 student assessments in compliance with the Elementary and Secondary
8 Education Act of 1965 (ESEA), as reauthorized and amended by P.L.
9 No. 114-95, also known as the Every Student Succeeds Act (ESSA).

10 2. The statewide student assessment system adopted by the Board
11 pursuant to this subsection shall be aligned with the Oklahoma
12 Academic Standards as adopted by the Board and which prepare
13 students for college and careers.

14 B. 1. The Board shall issue a request for proposals for the
15 selection of assessments to be administered to students in grades
16 three through twelve as a part of the statewide student assessment
17 system adopted by the Board pursuant to this section.

18 2. The Board shall adopt assessments from the selected
19 proposals that were submitted pursuant to paragraph 1 of this
20 subsection. The adopted assessments shall be administered by the
21 Board for a period that is in coordination with the six-year subject
22 area textbook adoption cycle unless the vendor does not fulfill the
23 terms of the contract or fails to comply with or violates the terms
24

1 of the contract. The Board shall administer the assessments
2 beginning with the 2017-2018 school year.

3 C. The statewide student assessment system adopted by the Board
4 pursuant to this section shall include assessments that:

5 1. Are aligned with the Oklahoma subject matter standards as
6 adopted by the Board;

7 2. Provide a measure of comparability among other states;

8 3. Yield both norm-referenced scores and criterion-referenced
9 scores;

10 4. Have a track record of statistical reliability and accuracy;
11 and

12 5. For assessments administered in high school, provide a
13 measure of future academic performance.

14 D. For the 2016-2017 school year, the Board shall administer
15 assessments in:

16 1. English Language Arts or ~~Reading~~ reading and ~~Mathematics~~
17 mathematics in grades three through eight and at least once in high
18 school, during the grade span of nine through twelve;

19 2. Science not less than once during each grade span of three
20 through five, six through nine, and ten through twelve; and

21 3. United States History not less than once during the grade
22 span of nine through twelve.

23 E. 1. Beginning with the 2017-2018 school year, the statewide
24 student assessment system shall include assessments in:

- a. English Language Arts and ~~Mathematics~~ mathematics in grades three through eight and at least once in high school, during the grade span of nine through twelve,
- b. ~~Science~~ science not less than once during each grade span of three through five, six through nine, and ten through twelve, and
- c. United States History, with an emphasis on civics, not less than once during the grade span of nine through twelve.

2. Beginning with the 2017-2018 school year, the statewide student assessment system may include:

- a. assessments in ~~Reading~~ reading and ~~Writing~~ writing in certain grades as determined by the Board, and
- b. contingent upon the availability of funds, an additional nationally recognized college- and career-readiness assessment or assessments as recommended by the State Department of Education which will be administered to students in high school at no cost to the student.

F. 1. Beginning with students entering the ninth grade in the 2017-2018 school year, each student shall take the assessment or assessments included in the statewide student assessment system adopted by the Board pursuant to subsection A of this section in order to graduate from a public high school with a standard diploma.

1 All students shall take the assessment or assessments prior to
2 graduation, unless otherwise exempt by law.

3 2. Beginning with students entering the ninth grade in the
4 2017-2018 school year, each student, in addition to taking the
5 assessment or assessments included in the statewide student
6 assessment system adopted by the Board pursuant to subsection A of
7 this section, shall meet any other high school graduation
8 requirements adopted by the Board pursuant to Section 5 of Enrolled
9 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
10 Legislature in order to graduate from a public high school with a
11 standard diploma.

12 3. For students who start the ninth grade prior to or during
13 the 2016-2017 school year, school districts shall adopt a plan that
14 establishes the assessment or assessments those students are
15 required to take in order to graduate from a public high school with
16 a standard diploma. The plan may also include any or all of the
17 other high school graduation requirements adopted by the Board
18 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
19 Session of the 55th Oklahoma Legislature that those students will be
20 required to meet in order to graduate from a public high school with
21 a standard diploma.

22 4. The Board shall promulgate rules to ensure that students who
23 transfer into an Oklahoma school district from out-of-state after
24 the junior year of high school shall not be denied the opportunity

1 to be awarded a standard diploma due to differing testing
2 requirements.

3 G. In order to provide an indication of the levels of
4 competency attained by the student in a permanent record for
5 potential future employers and institutions of higher education,
6 school districts shall report on the high school transcript of the
7 student the highest-achieved score on the assessment or assessments
8 included in the statewide student assessment system adopted by the
9 Board pursuant to subsection A of this section and any business- and
10 industry-recognized endorsements attained.

11 H. Students who do not perform at a proficiency level on
12 assessments shall be remediated as established in the assessment
13 requirements adopted by the Board pursuant to Section 5 of Enrolled
14 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
15 Legislature, subject to the availability of funding.

16 I. 1. All assessments required by this section shall measure
17 academic competencies in correlation with the subject matter
18 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
19 103.6a of this title and referred to as the Oklahoma Academic
20 Standards. The State Board of Education shall evaluate the subject
21 matter standards to ensure the competencies reflect high standards,
22 are specific, well-defined, measurable, and challenging, and will
23 prepare elementary students for next-grade-level course work and
24 secondary students for postsecondary studies at institutions of

1 higher education or technology center schools without the need for
2 remediation. All subject matter standards shall reflect the goals
3 as set forth in Section 11-103.6 of this title and of improving the
4 state average ~~ACT score~~ of college entrance exam scores.

5 2. The State Department of Education shall annually evaluate
6 the results of the assessments. The State Board of Education shall
7 ensure that preliminary results for all statewide assessments are
8 reported to districts no later than June 20 of each year and are
9 presented in a manner that yields detailed, diagnostic information
10 for the purpose of guiding instruction and student remediation. As
11 improvements are made to the assessments required by this section,
12 the Board shall seek to increase the depth of knowledge assessed for
13 each subject. The State Board of Education shall seek to ensure
14 that data yielded from the assessments required in this section are
15 utilized at the school district level to inform instruction,
16 professional development, school improvement, and remediation for
17 students.

18 3. The Commission for Educational Quality and Accountability
19 shall determine the cut scores for the performance levels on all
20 statewide assessments. The Commission shall conduct an ongoing
21 review to compare the statewide assessment content and performance
22 descriptors with those of other states. Upon receipt of the review,
23 the Commission may adjust the cut scores as necessary.

1 4. The State Board of Education, for the purposes of conducting
2 reliability and validity studies, monitoring contractor adherence to
3 professionally accepted testing standards, and providing
4 recommendations for testing program improvement, shall retain the
5 services of an established, independent agency or organization that
6 is nationally recognized for its technical expertise in educational
7 testing but is not engaged in the development of aptitude or
8 achievement tests for elementary or secondary level grades. These
9 national assessment experts shall annually conduct studies of the
10 reliability and validity of the statewide assessments administered
11 pursuant to this section. Validity studies shall include studies of
12 decision validity and concurrent validity.

13 J. 1. The State Board of Education shall promulgate rules
14 setting the assessment window dates for each statewide assessment so
15 that the assessments are administered according to recommended
16 testing protocols, and so that the assessment results are reported
17 back to school districts in a timely manner. The vendor shall
18 provide a final electronic data file of all school site, school
19 district, and state results to the State Department of Education and
20 the Office of Educational Quality and Accountability prior to August
21 20 of each year. The Department shall forward the final data files
22 for each school district and each school site in that district to
23 the school district. The Board shall ensure the contract with the
24 vendor includes a provision that the vendor report assessment

1 results directly to the Office of Educational Quality and
2 Accountability at the same time it is reported to the Board.

3 2. State, district, and site level results of all assessments
4 required in this section shall be disaggregated by gender, race,
5 ethnicity, disability status, migrant status, English proficiency,
6 and status as economically disadvantaged, except that such
7 disaggregation shall not be required in a case in which the number
8 of students in a category is insufficient to yield statistically
9 reliable information or the results would reveal personally
10 identifiable information about an individual student. Each school
11 site shall notify the student's parents or legal guardians of the
12 school's performance levels in the Oklahoma School Testing Program
13 as reported in the Oklahoma Educational Indicators Program at the
14 end of each school year.

15 K. The State Board of Education shall be responsible for the
16 field-testing and validation of the statewide assessment system
17 required in subsection A of this section.

18 L. The State Board of Education shall develop, administer, and
19 incorporate as a part of the Oklahoma School Testing Program, other
20 assessment programs or procedures, including appropriate
21 accommodations for the assessment of students with disabilities as
22 required by the Individuals with Disabilities Education Act (IDEA),
23 20 U.S.C., Section 1400 et seq.

1 M. For purposes of developing and administering alternate
2 assessments for students with the most significant cognitive
3 disabilities, the State Board of Education shall not be subject to
4 subsections D and E of Section 11-103.6a of this title.

5 SECTION 5. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1210.508-7 of Title 70, unless
7 there is created a duplication in numbering, reads as follows:

8 A. As used in this title:

9 1. "Classic Learning Test" or "CLT" means the Classic Learning
10 Test administered by Classic Learning Initiatives, LLC; and

11 2. "Testing site" means an independently run testing center
12 operated by the assessment company and any physical location where
13 means of education are provided including public school districts,
14 charter schools, private schools, institutions of higher education
15 within The Oklahoma State System of Higher Education, and private
16 institutions of higher education in this state.

17 B. Students in this state who take the Classic Learning Test
18 (CLT) shall only take the test in a brick-and-mortar testing site.

19 SECTION 6. AMENDATORY 70 O.S. 2021, Section 2403, is
20 amended to read as follows:

21 Section 2403. A. No person shall be eligible to participate in
22 the Oklahoma State Regents' Academic Scholars Program unless the
23 person:
24

1 1. Has complied with all of the rules promulgated by the
2 Oklahoma State Regents for Higher Education pursuant to the
3 provisions of the Oklahoma State Regents' Academic Scholars Act,
4 Section 2401 et seq. of this title, for the award, regulation, and
5 administration of scholarships; and

6 2. Qualifies as one of the following:

- 7 a. an Individual Applicant Qualified Student, which shall
8 mean a student who is a resident of ~~the State of~~
9 ~~Oklahoma~~ this state whose ~~American College Testing~~
10 ~~Program score or whose Scholastic Aptitude Test score~~
11 on a nationally norm-referenced college entrance exam
12 falls within the 99.5 to 100.0 percentile levels as
13 administered in ~~the State of Oklahoma~~ this state and
14 whose grade point average and/or class rank is
15 exceptional, as determined by the State Regents,
- 16 b. a Presidential Scholar, which shall mean a student
17 selected by the Commission on Presidential Scholars
18 administered by the United States Department of
19 Education,
- 20 c. a National Merit Scholar, which shall mean a student
21 designated as a National Merit Scholar by the National
22 Merit Scholarship Corporation,
23
24

- d. a National Merit Finalist, which shall mean a student designated as a National Merit Finalist by the National Merit Scholarship Corporation, or
- e. after October 1, 1999, an Institutional Nominee, which shall mean a student nominated by an institution in The Oklahoma State System of Higher Education:
- (1) whose ~~American College Testing Program or Scholastic Aptitude Test~~ score on a nationally norm-referenced college entrance exam falls within the 95.0 to 99.49 percentile levels, or
 - (2) who shows exceptional academic achievement as evidenced by factors, including, but not limited to, grade point average, class rank, national awards, scholastic achievements, honors, and who shows exceptional promise based on documentation that may include, but not be limited to, teacher recommendations, extracurricular activities, and evidence of overcoming economic and social obstacles as determined by the State Regents.
- The State Regents shall ensure that standards of high academic ability are documented.
- Scholarship awards to Institutional Nominees shall become effective when appropriate documentation is verified by the State Regents.

1 B. No person shall be eligible to receive a scholarship
2 pursuant to the provisions of the Oklahoma State Regents' Academic
3 Scholars Program unless the person is enrolled as a full-time
4 student at a public or private accredited institution of higher
5 education in Oklahoma.

6 C. The Oklahoma State Regents' Academic Scholars Program shall
7 provide a scholarship in an amount not to exceed the average costs
8 of all enrollment fees, tuition and other fees, room and board, and
9 all required textbooks or materials for up to five (5) years of
10 undergraduate and/or graduate study at an accredited public or
11 private institution of higher education in Oklahoma as provided in
12 subsection E of this section. The State Regents may establish
13 separate scholarship award levels for each qualifying category.

14 D. If a person identifies himself or herself as a student with
15 a disability and requests consideration for a scholarship under the
16 Academic Scholars Program by means other than standard testing
17 procedures, the State Regents shall determine what means of
18 assessment are appropriate and upon the basis of ~~said~~ such
19 assessment results, determine what level of award, if any, shall be
20 made.

21 E. 1. If the student is attending an institution of The
22 Oklahoma State System of Higher Education, the total funding for the
23 scholarship provided in this section, exclusive of any internships,
24 shall not exceed the costs for items specified in subsection C of

1 this section at the institution attended as determined annually by
2 the Oklahoma State Regents for Higher Education.

3 2. If the student is attending a private institution of higher
4 education, the total funding for the scholarship provided in this
5 section, exclusive of any internships, shall not exceed the costs
6 for items specified in subsection C of this section at an
7 institution of The Oklahoma State System of Higher Education of
8 comparable type which has the highest general enrollment fees of its
9 type institution in The Oklahoma State System of Higher Education as
10 determined annually by the Oklahoma State Regents for Higher
11 Education.

12 SECTION 7. AMENDATORY 70 O.S. 2021, Section 2603, as
13 amended by Section 1, Chapter 440, O.S.L. 2024 (70 O.S. Supp. 2024,
14 Section 2603), is amended to read as follows:

15 Section 2603. A. Except as otherwise provided for in
16 subsection B of this section and elsewhere in this section, to be
17 eligible to participate in the Oklahoma Higher Learning Access
18 Program and to qualify for an award which includes payment of an
19 amount equivalent to resident tuition or other tuition pursuant to
20 Section 2604 of this title for the first semester or other academic
21 unit of postsecondary enrollment, a student shall:

22 1. Be a resident of this state or be enrolled in a school
23 district located in this state that serves students who reside in
24

1 both this state and an adjacent state pursuant to a contract as
2 authorized in Section 5-117.1 of this title;

3 2. Be a United States citizen or lawfully present in the United
4 States. A student who is not a United States citizen or lawfully
5 present in the United States shall not be eligible to participate in
6 the Oklahoma Higher Learning Access Program and to qualify for an
7 award notwithstanding the provisions of Section 3242 of this title.
8 The provisions of this paragraph shall not apply to any student who
9 was enrolled in the Oklahoma Higher Learning Access Program prior to
10 the end of the 2006-2007 school year;

11 3. Have a record of satisfactory compliance with agreements
12 executed pursuant to Section 2605 of this title;

13 4. a. have graduated within the previous three (3) years
14 from a high school accredited by the State Board of
15 Education or the Oklahoma School of Science and
16 Mathematics with a minimum 2.5 cumulative grade point
17 average on a 4.0 scale for all work attempted in
18 grades nine through twelve,

19 b. have graduated within the previous three (3) years
20 from a high school not accredited by the State Board
21 of Education with a minimum 2.5 cumulative grade point
22 average on a 4.0 scale for all work attempted in
23 grades nine through twelve and have achieved a
24

1 composite score of 22 or higher on the ACT test or an
2 equivalent score on the SAT or CLT, or

3 c. have satisfactorily completed within the previous
4 three (3) years an educational program that was
5 provided through a means other than a public or
6 private school and have achieved a composite score of
7 22 or higher on the ACT test or an equivalent score on
8 the SAT or CLT;

9 5. Have completed the curricular requirements for admission to
10 an institution within The Oklahoma State System of Higher Education
11 and one additional unit or set of competencies in a course that
12 meets college admission requirements~~+~~+, or have completed the core
13 curriculum and be seeking admission to a technology center school
14 overseen by the State Board of Career and Technology Education. The
15 curriculum requirements for admission to an institution within The
16 Oklahoma State System of Higher Education shall include two units or
17 sets of competencies in foreign or non-English language or
18 technology courses that meet the college admission requirements and
19 one unit or set of competencies of a fine arts course. Students
20 shall also have attained a 2.5 grade point average in the core
21 curriculum courses. Students who attended a high school which did
22 not offer all the core curriculum courses or students who were
23 educated by other means and were not offered all the core curriculum
24 courses shall be allowed to satisfy this curriculum requirement by

1 participating in a program approved by the Oklahoma State Regents
2 for Higher Education for remediation of high school curricular
3 deficiencies;

4 6. Have satisfied admission standards as determined by the
5 Oklahoma State Regents for Higher Education for first-time-entering
6 students for the appropriate type of institution, or, if attending a
7 private institution, have satisfied admission standards as
8 determined by the private institution. No student participating in
9 the Oklahoma Higher Learning Access Program shall be admitted into
10 an institution of higher education by special admission standards;

11 7. Have secured admission to, and enrolled in, an institution
12 which is a member of The Oklahoma State System of Higher Education,
13 a postsecondary vocational-technical program offered by a technology
14 center school that meets the requirements to be eligible for federal
15 student financial aid, or a private institution of higher learning
16 located within this state and accredited pursuant to Section 4103 of
17 this title; and

18 8. a. have established financial need according to the
19 provisions of subsection D of Section 2605 of this
20 title and standards and provisions promulgated by the
21 Oklahoma State Regents for Higher Education,

22 b. if the student was adopted between birth and twelve
23 (12) years of age while in the permanent custody of
24 the Department of Human Services, in the court-ordered

1 custody of a licensed private nonprofit child-placing
2 agency, or federally recognized Indian tribe, as
3 defined by the federal Indian Child Welfare Act of
4 1978, have established financial need according to the
5 provisions of paragraph 1 of subsection E of Section
6 2605 of this title and standards and provisions
7 promulgated by the Oklahoma State Regents for Higher
8 Education, or

9 c. if the student was adopted between thirteen (13) and
10 seventeen (17) years of age while in the permanent
11 custody of the Department of Human Services, in the
12 court-ordered custody of a licensed private nonprofit
13 child-placing agency, or federally recognized Indian
14 tribe, as defined by the federal Indian Child Welfare
15 Act of 1978, have established financial need according
16 to the provisions of paragraph 2 of subsection E of
17 Section 2605 of this title and standards and
18 provisions promulgated by the Oklahoma State Regents
19 for Higher Education.

20 B. 1. A student shall be eligible to participate in the
21 Oklahoma Higher Learning Access Program and to qualify for an award
22 which includes payment of an amount equivalent to resident tuition
23 or other tuition pursuant to Section 2604 of this title for the
24

1 first semester or other academic unit of postsecondary enrollment if
2 the student meets all of the following criteria:

3 a. is a child of any person killed after January 1, 2000,
4 in the line of duty in any branch of the United States
5 Armed Forces or who died after January 1, 2000, as a
6 result of an injury sustained while in the line of
7 duty in any branch of the United States Armed Forces
8 and the person who was killed or died filed an
9 individual or joint Oklahoma income tax return for the
10 tax year prior to the year during which the person was
11 killed or died,

12 b. is a resident of this state or is enrolled in a school
13 district located in this state that serves students
14 who reside in both this state and an adjacent state
15 pursuant to a contract as authorized in Section 5-
16 117.1 of this title,

17 c. enrolls in an institution within The Oklahoma State
18 System of Higher Education prior to reaching the age
19 of twenty-one (21),

20 d. has satisfied admission standards as determined by the
21 Oklahoma State Regents for Higher Education for first-
22 time-entering students for the appropriate type of
23 institution, or, if attending a private institution,
24 has satisfied admission standards as determined by the

1 private institution. No student participating in the
2 Oklahoma Higher Learning Access Program shall be
3 admitted into an institution of higher education by
4 special admission standards,

5 e. has secured admission to, and enrolled in, an
6 institution which is a member of The Oklahoma State
7 System of Higher Education, a postsecondary
8 vocational-technical program offered by a technology
9 center school that meets the requirements to be
10 eligible for federal student financial aid, or a
11 private institution of higher learning located within
12 this state and accredited pursuant to Section 4103 of
13 this title, and

14 f. executes an agreement pursuant to subsection C of
15 Section 2605 of this title.

16 2. A student who is eligible to participate in the program
17 pursuant to this subsection shall not be required to meet the
18 eligibility requirements set forth in subsection A of this section.

19 C. To retain eligibility while pursuing the program of higher
20 learning in which enrolled, the student shall:

21 1. Meet the requirements for retention and degree completion as
22 established by the institution in which the student is enrolled;

1 2. Maintain good academic standing and satisfactory academic
2 progress according to standards of the Oklahoma State Regents for
3 Higher Education;

4 3. Maintain satisfactory academic progress as required for
5 eligibility for federal Title IV student financial aid programs.
6 The provisions of this paragraph shall become effective for the
7 2012-2013 school year;

8 4. Comply with the standards related to maintenance of
9 eligibility as promulgated by the Oklahoma State Regents for Higher
10 Education; and

11 5. Refrain from conduct that leads to expulsion or suspension
12 of more than one semester from an institution of higher education.
13 A student who violates the provisions of this paragraph shall
14 permanently lose eligibility for program benefits. The provisions
15 of this paragraph shall become effective January 1, 2008.

16 D. The Oklahoma State Regents for Higher Education and the
17 State Board of Career and Technology Education shall promulgate
18 rules relating to maintenance of eligibility under the Oklahoma
19 Higher Learning Access Act by a student.

20 E. It is the intent of the Legislature that students in the
21 ninth grade for the 1992-93 school year who are determined to be
22 eligible Oklahoma Higher Learning Access students pursuant to the
23 Oklahoma Higher Learning Access Act shall be the first students
24

1 eligible for benefits from the Oklahoma Higher Learning Access Trust
2 Fund.

3 F. The Oklahoma State Regents for Higher Education are
4 authorized to study, develop, and propose criteria for determining
5 award eligibility based upon the completion of seven semesters of
6 high school coursework by a student.

7 SECTION 8. This act shall become effective July 1, 2025.

8 SECTION 9. It being immediately necessary for the preservation
9 of the public peace, health, or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
13 April 22, 2025 - DO PASS AS AMENDED BY CS
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